

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SAN MATEO**

Special Set Calendar
Honorable Mark A. McCannon
1050 Mission Road, South San Francisco, CA 94080
Department 2, Courtroom K
8/13/2026 at 9:30 AM

If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).

Failure to comply with notice as outlined will result in no oral presentation.

Notice of Appearance and Courtesy Copies

1. Email Dept2@SanMateoCourt.org before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling **OR** call (650) 261-5102 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:
LawAndMotionReplyBriefs@SanMateoCourt.org

Day of Hearing

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

Remote Appearance Zoom Information

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/>

Meeting ID: 160 135 4419

Password: 845111

Zoom telephone dial-in: +1 (669)-254-5252

TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.

9:30 AM

LINE: 1

23-CIV-01369

PATRICIA MORGOVSKY VS. ANETTA KALK MIGDAL AND AS A TRUSTEE OF MIGDAL 2016
LIVING TRUST, ET AL

PATRICIA MORGOVSKY

ANETTA KALK MIGDAL AND AS A TRUSTEE OF MIGDAL 2016 LIVING TRUST

PRO SE

WILLIAM F. STANGER

OMNIBUS MOTION OF PLAINTIFF NAUM MORGOVSKY TO FILE NUNC PRO TUNC SUBSTITUTION OF PLAINTIFF
PATRICIA MORGOVSKY AND TO STRIKE DEFENDANTS' ANSWERS AND ENTER THEIR DEFAULTS

TENTATIVE RULING:

Plaintiff Naum Morgovsky's Omnibus Motion to File Nunc Pro Tunc Substitution of Plaintiff Patricia Morgovsky and to Strike Defendants Anetta Kalk Migdal's and Mark Migdal's Answers and Enter Their Defaults is **DENIED**.

The hearing set for August 13, 2026, is **VACATED**.

Preliminary Matters

As a preliminary matter, the notice of motion is defective. Code of Civil Procedure section 1010 requires that a notice of motion be in writing and state when the motion will be made, the grounds upon which it will be made, and the papers upon which it is based. California Rules of Court, rule 3.1110(a), further provides that the opening paragraph of a notice of motion must state the nature of the order sought and the grounds for issuance of the order. The present motion proceeds from the caption directly to the supporting memorandum and contains no separate notice of motion satisfying these requirements.

Defendants Anetta Kalk Migdal ("Anetta") and Mark Migdal ("Mark") object to this procedural defect but acknowledge that they suffer no prejudice except to the extent the Court might grant relief on grounds not reasonably apparent from the moving papers. Because the Court denies the motion in its entirety for the reasons stated below, it finds no prejudice from considering the motion on the merits notwithstanding the defective notice.

There is, however, no indication that Defendants' opposition was properly served on Plaintiff Naum Morgovsky ("Naum"). The proof of service purports to establish electronic service on Naum but does not identify his electronic service address. (July 9, 2026 Memorandum of Points and Authorities, p. 14.) A proof of electronic service must identify the name and electronic service address of the person served. (Code Civ. Proc., § 1013b, subd. (b)(3).) Moreover, because Naum is self-represented, electronic service requires his affirmative consent; the mere act of electronically filing documents does not constitute such consent. (Code Civ. Proc., § 1010.6, subd. (c)(2)–(3).)

Accordingly, the Court has not considered Defendants' opposition because the record does not establish that it was properly served on Naum. The parties are advised that future violations of applicable filing and service requirements may result in sanctions as authorized by California Rules of Court, rule 2.30.

From the memorandum of points and authorities, Naum appears to seek an order: (1) deeming Exhibits 1 and 2 to Patricia Morgovsky's declaration filed nunc pro tunc as of September 17, 2024, thereby effectuating the substitution of Naum for Patricia as plaintiff; and (2) striking Anetta's and Mark's answers to the First Amended Complaint ("FAC") as untimely and entering their defaults.

Request for Nunc Pro Tunc Substitution

Naum contends that, on September 17, 2024, Patricia assigned to him all of her claims in this action. (Jan. 28, 2026 Motion, p. 22, ¶¶ 3–4.) Before the FAC was filed removing Patricia and naming Naum as the sole plaintiff, Patricia attempted to file a "Notice of Substitution," together with a proof of service, seeking to substitute Naum as plaintiff. (Id. at p. 26.) According to Patricia, the clerk rejected the submission because no proposed order or filing fee accompanied it. (Id. at p. 23, ¶ 7.)

Naum contends that the clerk lacked authority to reject those documents and had a ministerial duty to file them. The Court disagrees that the attempted filing, standing alone, effected a substitution of parties.

Code of Civil Procedure section 368.5 directly addresses a transfer of interest occurring during a pending action:

An action or proceeding does not abate by the transfer of an interest in the action or proceeding or by any other transfer of an interest. The action or proceeding may be continued in the name of the original party, or the court may allow the person to whom the transfer is made to be substituted in the action or proceeding.

(Code Civ. Proc., § 368.5.)

Thus, assuming Patricia validly assigned her interest to Naum, the assignment did not automatically substitute Naum as plaintiff. The action could have continued in Patricia's name, or the Court could have exercised its discretion to substitute Naum as the transferee. (*Casey v. Overhead Door Corp.* (1999) 74 Cal.App.4th 112, 121–123.) A unilateral "Notice of Substitution" did not itself accomplish the judicial substitution contemplated by section 368.5.

Nor may the Court now accomplish that result retroactively through a nunc pro tunc order. The purpose of a nunc pro tunc order is to correct the record so that it accurately reflects judicial action that was actually taken at an earlier time. It may not be used to create retroactively an order that was never made. (*Siegal v. Superior Court* (1968) 68 Cal.2d 97, 101–102 [the function of a nunc pro tunc order is not "to make an order now for then, but to enter now for then an order previously made"].)

Nothing in the record indicates that the Court ordered Naum substituted for Patricia on September 17, 2024, or that the clerk merely failed to record an order actually made by the Court. Naum therefore seeks not to

correct the record of a prior judicial act, but to obtain a present order and have it given retroactive effect. Nunc pro tunc relief is unavailable for that purpose.

The filing-fee issue does not alter this conclusion. California law generally requires payment of the applicable filing fee before the clerk is required to accept for filing a document for which a statutory fee is required. (*Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 459–463; *Mirvis v. Crowder* (1995) 32 Cal.App.4th 1684, 1686–1687.) Government Code section 70617, subdivision (a), currently imposes a \$60 fee for filing a motion, application, or other paper requiring a hearing after the first paper. The Court need not determine whether every reason stated by the clerk for rejecting Patricia's September 2024 submission was correct because, regardless of the filing issue, the attempted "Notice of Substitution" did not itself constitute a court order substituting Naum under section 368.5.

Accordingly, Naum's request to deem the September 17, 2024 documents filed nunc pro tunc so as to effectuate his substitution as plaintiff as of that date is **DENIED**.

Because the subsequently filed FAC identifies Naum as the sole plaintiff in this action, Patricia shall be omitted from the Court's service list. All further notices and papers shall be served on Naum at his address of record: 6 Skymont Court, Belmont, California 94002. A copy of the January 28, 2026 Notice of Case Management Conference shall be re-served on Naum at that address.

Request to Strike Answers and Enter Defaults

Naum also seeks to strike Anetta's and Mark's answers to the FAC and to have their defaults entered.

The request is **DENIED**.

The FAC was served on October 28, 2024. Anetta and Mark filed their answers on November 25, 2024, within 30 days after service of the amended pleading. (See Code Civ. Proc., § 471.5, subd. (a); Nov. 25, 2024 Answers; Oct. 28, 2024 Proof of Service.) Section 471.5, subdivision (a), requires a defendant to answer an amended complaint within 30 days after service and permits entry of default upon a failure to answer.

Naum does not dispute that Anetta and Mark filed answers within the statutory period. Instead, he contends that the answers were not properly served on him within that period and therefore should be stricken and Defendants' defaults entered.

The Court agrees that the record indicates a defect in service. When service is made by mail, Code of Civil Procedure section 1013, subdivision (a), requires the document to be addressed to the person served at the office address last given by that person in a document filed in the action and served on the party making service, or otherwise at that person's residence. Naum identifies 6 Skymont Court, Belmont, California 94002 as his address of record, and the proofs of service accompanying the November 25, 2024 answers do not reflect service at that address. (See Oct. 28, 2024 First Amended Complaint, p. 1; Nov. 25, 2024 Proofs of Service.)

That service defect, however, does not establish a basis for striking timely filed answers and entering defaults. Section 471.5 authorizes default upon a defendant's failure to answer. Here, both Defendants answered.

Naum identifies no authority establishing that defective service of a timely filed answer converts an answering defendant into a defaulting party or requires the Court to strike the answer.

Moreover, striking a pleading and entering default would be disproportionate to a service defect that is readily curable and that does not alter the fact that responsive pleadings were timely filed. (Cf. *Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 [where a defect justifying striking a pleading is capable of cure, the pleader ordinarily should be afforded an opportunity to correct it].)

Accordingly, Naum’s request to strike Anetta’s and Mark’s answers to the FAC and enter their defaults is **DENIED**.

Disposition

Naum Morgovsky’s Omnibus Motion to File Nunc Pro Tunc Substitution of Plaintiff Patricia Morgovsky and to Strike Defendants Anetta Kalk Migdal’s and Mark Migdal’s Answers and Enter Their Defaults is **DENIED in its entirety**.

The hearing set for August 13, 2026, is **VACATED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendants Anetta Kalk Migdal and Mark Migdal, as the prevailing parties, shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 2

26-UDL-00079

473-475 GRAND AVE LLC VS. ARTURO PEREZ, ET AL

473-475 GRAND AVE LLC
ARTURO PEREZ

JOANNA KOZUBAL
PRO SE

PLAINTIFF 473-475 GRAND AVE LLC'S MOTION TO ENFORCE SETTLEMENT AGREEMENT PER CCP 664.6 AND FOR JUDGMENT PURSUANT TO STIPULATION

TENTATIVE RULING:

For the reasons stated below, the Motion to Enforce Settlement Agreement under Code of Civil Procedure section 664.6 and for Entry of Judgment Pursuant to Stipulation, filed by Plaintiff 473-475 Grand Ave, LLC ("Plaintiff"), is **DENIED WITHOUT PREJUDICE**.

First, Plaintiff has not established proper service of the motion on Defendants Arturo Perez and Rubenia Elizabeth Zuniga ("Defendants"). The proof of service states that both Defendants were served electronically at a single email address: andrewperez2129@gmail.com. Defendants are self-represented, and the Court's records contain no evidence that either Defendant expressly consented to electronic service. (Code Civ. Proc., § 1010.6, subd. (c)(2), (3).) Electronic filing alone does not constitute express consent to electronic service. (Id., subd. (c)(3)(ii).) Moreover, even if electronic service were authorized, Plaintiff has not established that this single email address is a valid electronic service address for both Defendants.

Second, the notice of motion does not state the courthouse address for Department 2. The first page of each paper must specify the date, time, and location, if ascertainable, of the scheduled hearing. (Cal. Rules of Court, rule 3.1110(b)(1).) The notice is therefore deficient.

If the tentative ruling is uncontested, it will become the order of the Court. Because Defendants are self-represented, counsel for Plaintiff shall prepare, serve, and submit a proposed order that repeats this tentative ruling verbatim, in accordance with California Rules of Court, rule 3.1312, and San Mateo County Superior Court Local Rule 3.403(b)(iv). Plaintiff shall provide written notice of the ruling to all parties who have appeared in the action, as required by law.

9:30 AM

LINE: 3

25-CIV-09320

BART D. KIMBER VS. JOE TORRES, ET AL

BART D. KIMBER
JOE TORRES

PRO SE
WILLIAM B. LUTON

DEFENDANT JOE TORRES AND ALL RISK SHIELD INC'S MOTION TO TRANSFER/CHANGE VENUE

TENTATIVE RULING:

For the reasons stated below, the motion to change venue to San Luis Obispo County is **GRANTED** pursuant to CCP §396b. Defendants have offered evidence to show that San Mateo County is neither their residence nor principal place of business. When a plaintiff brings an action against several defendants, both individual and corporate, in a county which is neither the residence nor principal place of business of any defendant, an individual defendant has a right to a change of venue to the county of his residence even though venue as initially laid may otherwise be justifiable upon one of the grounds in §395.5. *Carruth v. Superior Court* (1978) 80 Cal.App.3d 215, 220-221.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 4

23-CIV-03335

WILLIAM ROGERS, ET AL VS. TRANSITAMERICA SERVICES, INC., ET AL

WILLIAM ROGERS
TRANSITAMERICA SERVICES, INC.

ANDREW P MCDEVITT
STEPHANIE L QUINN

DEFENDANTS PENINSULA CORRIDOR JOINT POWERS BOARD, TRANSITAMERICA SERVICES, INC. and HERZOG TRANSIT SERVICES, INC.’S MOTION TO COMPEL COMPLIANCE WITH SUBPOENA BY NON-PARTY STACY WITBECK, INC.

TENTATIVE RULING:

Defendant Peninsula Corridor Joint Powers Board’s unopposed motion for an order compelling non-party Stacy Witbeck Inc. (“SWI”), to produce responsive documents pursuant to deposition subpoena for production of records in response to Nos. 1 through 13 is **GRANTED**.

Defendant is reminded that exhibits **MUST** be properly bookmarked: it is not the Court’s onus to parse through a declaration over one hundred fifty pages in length to find exhibits cited therein. “[E]lectronic exhibits must include electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. Rules of Court, rule 3.1110(f)(4); see also San Mateo County Superior Court, L.R. 3.3 [“Failure to bookmark exhibits to electronically filed documents may result in rejection of the party’s e-filing by the Clerk of the Court or in continuance of the hearing by the Court on the related motion.”].)

BACKGROUND

This is an injury accident and negligence action brought by Plaintiff William Rogers and his wife Sarah Rogers against Defendants PCJPB, Transitamerica Services Inc. (“TASI”), and Herzog Transit Services, Inc. after Plaintiff William Rogers, an employee of Modern Railway Systems (“MRS”), was injured on Caltrain property.

Caltrain had contracted with Balfour Beatty Infrastructure (“BBI”) to modernize the Caltrain passenger rail service by converting from diesel powered locomotives to electrical power. As part of the Caltrain Electrification Project (hereinafter referred to as the “Project”), BBI subcontracted with MRS to perform signalization work. MRS is a subsidiary of SWI and SWI also provided services along with MRS as part of the Project.

The injury-accident occurred on August 25, 2022, when Plaintiff William Rogers was working on Caltrain’s property and fell through timber planking on the Oregon Expressway Bridge onto the Oregon Expressway below. The underlying lawsuit followed on July 20, 2023, and is set for trial on November 20, 2026. A cross-complaint was also filed.

The instant motion seeks to compel non-party SWI to produce responsive documents pursuant to the second deposition subpoena served on October 21, 2025, for production of records served on in response to Nos. 1 through 13 pursuant to Code of Civil Procedure sections 1987.1, 2025.280, 2025.480, 2025.450. (Declaration

of Pearl M. Walker iso Motion to Compel Compliance with Subpoena, filed January 5, 2026, ¶ 8, Ex. 5.) SWI served its objections to the second subpoena on November 5, 2025. (Walker Decl. ¶ 9 Ex. 6.) This motion was filed on Monday, January 5, 2026.

On July 9, 2026, defendant filed a notice of non-opposition to the instant motion.

On July 13, 2026, SWI filed a motion for relief pursuant to Code of Civil Procedure section 473 requesting that the Court allow Stacy Witbeck to argue its points in that opposition at the instant hearing date, July 16, 2026, because the opposition brief was not filed due to counsel's calendaring mistake. This motion is not properly before the Court and the Court declines to rule on the merits of the motion to vacate.

LEGAL STANDARD

"[T]he discovery statutes vest a wide discretion on the trial court in granting or denying discovery." (*Greyhound Corp. v. Superior Court In and For Merced County* (1961) 56 Cal.2d 355, 378 [superseded by statute].) " 'The standard of review generally applicable to review of discovery orders is abuse of discretion, as management of discovery lies within the sound discretion of the trial court. [Citations.]' [Citation.]" (*Haniff v. Superior Court* (2017) 9 Cal.App.5th 191, 198.)" (*Manuel v. Superior Court of Santa Clara County* (2022) 82 Cal.App.5th 719, 727.)

Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

(Code Civ. Proc., § 2017.010.)

In California, discovery may be obtained from a nonparty through an oral deposition, a written deposition, or a deposition for the production of business records and things. (Code Civ. Proc., § 2020.010, subd. (a).) To pursue the deposition of a nonparty, a party must generally serve a deposition subpoena. (*Id.*, § 2020.010, subd. (b).) "A deposition subpoena that commands only the production of business records for copying shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item, and shall specify the form in which any electronically stored information is to be produced, if a particular form is desired." (*Id.*, § 2020.410, subd. (a).)

(*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1030.)

"[A] party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. (*Calcor*, at p. 224, 61 Cal.Rptr.2d 567.) In assessing the party's proffered justification, courts must keep in mind the more limited scope of discovery available from

nonparties. (See *Catholic Mutual Relief Society v. Superior Court* (2007) 42 Cal.4th 358, 366, fn. 6, 64 Cal.Rptr.3d 434, 165 P.3d 154.” (*Board of Registered Nursing v. Superior Court* (2021) 59 Cal.App.5th 1011, 1039 (*Board*)).)

DISCUSSION

Initially, the Court notes the instant motion is timely because the statutory 60th day fell on Sunday, January 4, 2026. Therefore, the instant motion’s filing date of January 5, 2026 was timely. (Code Civ. Proc. § 2025.480, subd. (b); *Board, supra*, 59 Cal.App.5th at 1031.)

Defendant PCJPB’ brings this motion on the basis that SWI has information that may be probative of issues of liability, comparative fault, as well as the facts and circumstances that lead to Plaintiff William Rogers’ injuries because this discovery is relevant to the subject matter involved in the pending action. Specifically, the request seeks all documents evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to Oregon Expressway Bridge during the period of August 1, 2022, to August 31, 2022. Defendant contends their original request has been substantially narrowed, limiting timeframe and the scope of the information sought. Even though an opposition was not timely presented, the Court addresses the merits of the request below as set forth in Defendant’s separate statement of responses filed in support of this motion.

REQUEST NO. 1: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the performance of any work, maintenance, or repair activities by Stacy Witbeck Inc., at or about BRIDGE, during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 1: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants’ prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 2: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to safety conditions, inspection findings, maintenance assessments, or any actual and/or potential safety hazards relating to BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 2: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants’ prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 3: ALL DOCUMENTS, communications, and records in any form evidencing, reflecting or referring to the existence, report, discovery, or repair of any open hole or hazardous opening on the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 3: SW objects to this request as improper, harassing, overly broad and impermissible under California law as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS (a subsidiary of SWI.) SW further objects to this request to the extent it seeks documents protected by the attorney-client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 4: All photographs, reports, or communications from August 1, 2022 to August 31, 2022 relating to any open hole on the BRIDGE, including those showing knowledge of the hole, safety measures taken, or changes to signage, markings, or warnings.

RESPONSE TO TOPIC NO. 4: SW objects to this request as improper, harassing, overly broad and impermissible under California law, and as well as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS. SW further objects to the phrases "knowledge of the hole," "safety measures taken," and "changes to signage, markings, or warnings" on the basis that they are all vague, ambiguous, and unintelligible, including but not limited to because it is unclear what the subject of the phrases is (i.e., whose or what's knowledge, who or what took the safety measures, who or what made the changes at issue in the request). The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 5: Any correspondence, including emails, letters, text messages, or other written communications, between employees, contractors, or third parties regarding any work performed in or around the BRIDGE from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 5: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 6: Any safety inspection reports, audits or evaluations conducted in relation to the BRIDGE, particularly any references to hazardous conditions, safety violations, or corrective actions taken from August 01, 2022, till August 31, 2022.

RESPONSE TO TOPIC NO. 6: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 7: All records, including incident reports and complaints, that document any injuries, close calls, or safety issues related to the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 7: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 8: Any photographs or videos depicting work performed on or near the BRIDGE from August 1, 2022, through August 31, 2022, including but not limited to images documenting project progress, inspections, or safety measures in effect during that period.

RESPONSE TO TOPIC NO. 8: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS, MRS's prior productions, and the information otherwise available to the Defendants. SW further objects to this request to the extent it seeks documents protected by the attorney client privilege, attorney work product privilege, or any other privilege or immunity. The request is also objectionable because it seeks information that is neither admissible nor reasonably calculated to lead to the discovery of admissible evidence.

RULING: GRANTED. The request is reasonably tailored and seeks photographs and videos relevant to the issues in dispute. The subpoena is appropriately limited to materials in SWI's possession depicting work performed by SWI at or near the Bridge during the relevant time period.

REQUEST NO. 9: Any maps, plans, diagrams, blueprints, engineering drawings or other technical DOCUMENTS evidencing, depicting, or referring to any work completed or planned by Stacy Witbeck, Inc. at or about the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 9: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 10: Any DOCUMENTS, including meeting minutes, notes, agendas, or summaries referring to or reflecting any safety meetings and/or project-related discussions in which Stacy Witbeck discussed the BRIDGE between August 1, 2022, and August 31, 2022.

RESPONSE TO TOPIC NO. 10: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 11: Any DOCUMENTS, communications and records in any form evidencing, reflecting, or referring to any complaints, reports, or notices made by Stacy Witbeck's employees, or third parties regarding actual or potential unsafe conditions at or near the BRIDGE during the period of August 1, 2022, to August 31, 2022.

RESPONSE TO TOPIC NO. 11: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 12: All DOCUMENTS, including but not limited to maintenance logs, repair records, work orders, inspection reports, and internal communications, concerning any maintenance or repair activity related to the BRIDGE from August 1, 2022 through August 31, 2022, specifically including any references to the existence of an open hole, any work performed to address or remedy such condition, and any removal, modification, or placement of warnings, signage, or safety markings related thereto.

RESPONSE TO TOPIC NO. 12: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence.

RULING: GRANTED. The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED**.

REQUEST NO. 13: All DOCUMENTS including but not limited to work orders, maintenance and repair records, inspection reports, photographs, videos, correspondence, and internal communications, relating to any work performed on or involving the signal equipment known as an AFTAC box and/or any associated junction box located on the north side of the BRIDGE near the Caltrain California Avenue Station, regardless of whether such work was planned, in progress, or completed.

RESPONSE TO TOPIC NO. 13: SW objects to this request as improper, harassing, and impermissible under California law. SW objects to this request as overly broad, harassing, and as seeking to place an unreasonable and undue burden on nonparty SW. SW further objects to this request as duplicative and unreasonably

cumulative in light of Defendants' prior subpoenas to MRS and for seeking privileged documents and information that is neither admissible nor reasonably calculated to lead to discovery of admissible evidence. **RULING: GRANTED.** The requested documents are relevant and proportional to the needs of the case. The objection is **OVERRULED.**

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 5

23-CIV-02445

GLORIA DEL ROSARIO AUSTRIA VS. KYU LEE, ET AL

GLORIA DEL ROSARIO AUSTRIA
KYU LEE

SHARONA ESLAMBOLY HAKIM
WILLIAM H. COKE

DEFENDANT, CROSS DEFENDANT AND CROSS COMPLAINANT KYU LEE'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

Plaintiff Gloria Del Rosario Austria alleges that she was injured after tripping and falling on the sidewalk in front of Defendant Kyu Lee's house. Plaintiff has sued Defendant Lee for Negligence and Premises Liability. Defendant Lee has moved for summary judgment or, alternatively, summary adjudication, as to both claims.

Defendant's motion for summary judgment is **GRANTED**.

Plaintiff's objections #1-10 are **OVERRULED**.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code of Civ. Proc., § 437c, subd. (a)(1).) Summary judgment will only be granted "if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." (Id., at subd. (c).)

"A party may move for summary adjudication as to one or more causes of action within an action ... if the party contends that the cause of action has no merit" (Code of Civ. Proc., § 437c, subd. (f)(1).) A cause of action has no merit if one or more of its elements cannot be separately established or an affirmative defense can be established. (Id., subd. (o).)

A defendant moving for summary judgment or summary adjudication has an initial burden of showing either that one or more elements of a cause of action cannot be established or that there is a complete defense to the cause of action. (Code of Civ. Proc., § 437c, subd. (p)(2).) Once the initial burden has been carried, the burden shifts to the opposing party to show that a triable issue of material fact exists as either to the cause of action or a defense thereto, as applicable. (Ibid.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.)

The moving party's ultimate burden of persuasion that there are no issues of triable fact, however, never shifts to the opposing party. (*Aguilar*, 25 Cal.4th at 850.) This burden is unaffected by the strength or weakness of the showing in opposition to the motion (*Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1519), and

summary judgment must be denied—despite deficiencies in the opposition—if the burden has not been carried (*Kojababian v. Genuine Home Loans, Inc.* (2009) 174 Cal.App.4th 408, 416).

Because summary judgment deprives an adverse party of the right to a trial, any doubts are resolved in favor of the party opposing the motion. (*Huynh v. Ingersoll-Rand* (1993) 16 Cal.App.4th 825, 830; *See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 900.) Thus, “[t]he moving party’s affidavits are to be strictly construed, and ... all conflicts in the affidavits are to be resolved in favor of the opposing party and all reasonable inferences are to be drawn in favor of that party as well.” (*Hufft v. Horowitz* (1992) 4 Cal.App.4th 8, 20.)

LEGAL ANALYSIS

Plaintiff’s Objections Fail

Plaintiff objects to several questions asked during her deposition concerning whether she remembers where, how and why she fell, including the following (in order from objection #1 to 10):

- (1) Is this where you fell where the accident occurred?
- (2) Do you know why you fell to the ground that day?
- (3) You don’t know why you fell?
- (4) Do you know if something caused you to trip and fall?
- (5) You don’t know what caused you to fall?
- (6) And you don’t know why you fell?
- (7) So it’s your testimony you don’t know why you fell?
- (8) Do you believe you tripped over something on the sidewalk when you fell?
- (9) Do you know why you fell?
- (10) Was there as specific thing on the sidewalk that caused you to fall?

(See Plaintiff’s Objections, Nos. 1-10.)

Plaintiff objects to each question on the same bases: lack of foundation; inadmissible speculation and conclusions; improper lay opinion; and call for expert opinion. (*Ibid.*)

Defendant argues that the objections are untimely and that questions to the form of question must be made at the time of the deposition when the question was asked. The Court need not reach those issues here. Each of the questions is a proper personal knowledge question asking Plaintiff to describe her firsthand experience of an event she personally witnessed and was involved in. Plaintiff has personal knowledge of her fall by definition. The questions do not call for speculation but rather call for Plaintiff’s own sensory experience. For those same reasons, the questions do not call for expert testimony and Plaintiff’s answers do not constitute improper lay opinion. The Court acknowledges that Plaintiff’s answers are not dispositive to her claims, which may be supported by other evidence.

Plaintiff’s objections #1-10 are **OVERRULED**.

Plaintiff Has Not Presented Evidence Creating Triable Issues of Fact

Negligence and premises liability claims share identical elements under California law. The elements are: (1) a legal duty of care owed by the defendant to the plaintiff, (2) breach of that duty, and (3) proximate cause resulting in injury and damages. (*Martin v. Gladstone* (2023) 96 Cal.App.5th 681, 689; *Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026, 1034.) For premises liability, the duty element requires that the property owner have actual or constructive knowledge of the dangerous condition, or should have been able to discover it through exercise of ordinary care. (*Joshi v. Fitness Int'l, LLC* (2022) 80 Cal. App.5th 814, 832-33.)

Defendant argues that both of Plaintiff's causes of action fail because Plaintiff testified at her deposition that she does not recall where on the sidewalk she fell. Thus, Plaintiff cannot establish that she fell on the portion of the sidewalk in front of Defendant's house. Defendant has submitted evidence that Plaintiff consistently testified at her deposition that she does not recall where she fell on sidewalk along the residential block where Defendant's house is located. (Coke Decl., Ex. B, Plaintiff's Deposition Transcript, 20:10-12, 30:8-16, 58:25 – 59:18, 60:15-22.)

Defendant has further presented evidence of Plaintiff's deposition testimony in which Plaintiff testified that she does not know why she fell; that there was no specific thing on the sidewalk that caused her to fall; that she walked on that sidewalk many times over the years, including twice a day during the six months leading up to the fall; and that she never noticed any change to the conditions on the sidewalk prior to the fall. (Id., at 26:18 – 27:6, 28:18 – 29:5, 30:24 – 31:11, 33:20-24, 53:25 – 54:3, 61:10-13.)

Finally, Defendant has submitted a declaration by Lisa Lee, Defendant's daughter, who has been acting as the property manager for the subject property since at least January of 2021. (Lee Decl., ¶¶ 2, 5.) Ms. Lee declares that there have never been any complaints or warnings from their tenants or anyone else to her or her parents regarding cracks or any other dangerous conditions to the sidewalk in front of their property. (Id., ¶¶ 7-9.)

Defendant has also presented evidence negating actual or constructive notice of any dangerous condition on the sidewalk in front of the property.

Plaintiff argues that she need not remember her fall to recover on her claims against Defendant. Plaintiff argues that she testified she tripped on the sidewalk in front of a brown house on the block where Defendant's house is located. (Oppo., 8:26-28, citing Plaintiff's Response to Defendant's UMF No. 14, 15, 19.) Plaintiff argues her deposition was taken approximately three years after the incident and that she sustained substantial trauma to her face and eye during the fall, both of which have affected her ability to recall details about the incident. (Oppo., 9:3-8.) Plaintiff further argues that her husband was with her at the time of the fall and was a witness to the incident and took pictures of the area where she fell. (Oppo., 9:8-12.)

While the Court agrees that Plaintiff need not necessarily recall the fall to recover on her claims, Plaintiff still must present other admissible evidence to establish triable issues as to the location of the fall, Defendant's breach, and causation. Plaintiff has failed to do so. The only evidence presented by Plaintiff is her full deposition transcript, without highlights to relevant testimony. Plaintiff testified at her deposition that while she did not recall the number of the house she fell in front of, she recalls that it was "light brown or brown something." (Coke Decl., Ex. B, 30:8-23.) However, Plaintiff has not presented any evidence that Defendant's house matches that description.

Separately, even if the Court were to assume that Defendant's house matched the brown house described in Plaintiff's deposition, Plaintiff has provided no evidence to establish a triable issue of fact that any dangerous or otherwise unreasonable condition of the sidewalk caused her to fall. In *Buehler v. Alpha Beta Co.* (1990) 224 Cal.App.3d 729, 733-34, the court affirmed summary judgment where the plaintiff had no idea what caused her to fall, finding that conjecture that the floor might have been defective at the location where the plaintiff happened to fall is mere speculation legally insufficient to defeat summary judgment. (See also, *Peralta v. Vons Companies, Inc.* (2018) 24 Cal.App.5th 1030, 1035-36 [absent any evidence of dangerous condition at location of fall, speculation does not establish causation].) Here, Plaintiff similarly relies on conjecture and speculation that is insufficient to defeat summary judgment.

Plaintiff argues that her husband was with her during the incident and allegedly took photographs of the area after the incident. However, Plaintiff has submitted no evidence of her husband's account of the events or the alleged photographs taken after the incident. Unproduced witness testimony cannot create a triable issue of fact. (*Wall St. Network, Ltd., v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1190-91 [trial court properly declined to consider alleged testimonial evidence not included with opposition where subject witness was available].) A party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture; the party must produce admissible evidence raising a triable issue of fact. (*Restivo v. City of Petaluma* (2025) 111 Cal.App.5th 267, 279.)

Accordingly, Defendant Lee's Motion for Summary Judgment is **GRANTED** as to Plaintiff's claims against Defendant for negligence and premises liability.

Any party who contests a tentative ruling must email Dept2@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests. The Court reminds parties argument will not be heard on the set hearing date. Parties will be notified of the date set for any argument if the motion is contested.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order and judgment in two separate documents consistent with the Court's ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 6

23-CIV-05747

SEAN VANDERVEEN, ON BEHALF OF HIMSELF AND ALL OTHERS SIMILARLY SITUATED VS
WOODMONT REAL ESTATE SERVICES, L.P.

SEAN VANDERVEEN, ON BEHALF OF HIMSELF AND ALL OTHERS SIMILARLY
SITUATED
WOODMONT REAL ESTATE SERVICES, L.P.

MEHRDAD BOKHOUR
CARY G. PALMER

SEAN VANDERVEEN, ON BEHALF OF HIMSELF AND ALL OTHERS SIMILARLY SITUATED MOTION FOR FINAL APPROVAL
OF CLASS ACTION SETTLEMENT

TENTATIVE RULING:

Plaintiff Sean Vanderveen’s Motion for Final Approval of Class and PAGA Settlement is DENIED WITHOUT PREJUDICE.

This is a class and representative action alleging wage-and-hour violations against Defendant Woodmont Real Estate Services, L.P. (“Defendant”).

On September 22, 2025, the Court granted preliminary approval of the parties’ class and PAGA settlement. According to the declaration of Garvin Brown, Case Manager for settlement administrator ILYM Group, Inc. (“ILYM”), ILYM received a class list containing 493 individuals and mailed the Court-approved Notice Packet to all 493 individuals on October 24, 2025. Twenty-five Notice Packets were returned as undeliverable, 17 of which were successfully re-mailed. Notice therefore was successfully delivered to 485 of the 493 Class Members. ILYM received two requests for exclusion, no objections, and no disputes. (Brown Decl., ¶¶ 5–13.)

The favorable reaction of the Class supports approval, but it does not relieve the Court of its obligation to independently determine whether the settlement is fair, adequate, and reasonable. (*Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801–1802.) In conducting that review, the Court must have sufficient information concerning the amount in controversy, the strengths and weaknesses of the claims, and the realistic range of potential outcomes to determine whether the consideration received for the released claims represents a reasonable compromise. (*Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 128–132.)

The PAGA component requires an independent assessment as well. A PAGA settlement should be evaluated to determine whether it is fair, reasonable, and adequate in light of PAGA’s purposes of remedying Labor Code violations, deterring future violations, and maximizing enforcement of California’s labor laws. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77, disapproved on another ground in *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 710.)

THE PRESENT RECORD IS INSUFFICIENT FOR FINAL APPROVAL

The present showing does not permit the Court to complete the required independent assessment. Plaintiff states that Class Counsel reviewed documents produced in discovery and prepared damages models before mediation. (Bokhour Decl., ¶¶ 30–31.) The papers also generally identify litigation risks, including disputes concerning whether PAGA penalties could be established on a representative basis and whether any penalties ultimately awarded

could be reduced. The settlement administrator estimates an average class payment of \$603.81 and an average PAGA payment of \$15.21 to aggrieved employees. (Brown Decl., ¶ 17.)

The motion, however, does not sufficiently quantify the potential value of the principal claims being released or explain how Class Counsel discounted those claims to arrive at the settlement amount. The Court is not provided with a meaningful estimate of Defendant's potential exposure for the minimum-wage, overtime, meal-period, rest-period, sick-pay, wage-statement, waiting-time, expense-reimbursement, and PAGA claims, or with sufficient information concerning the principal factual and legal risks assigned to those claims. General assurances that counsel investigated the claims and concluded that the settlement is favorable do not substitute for a record permitting the Court to independently evaluate the compromise. (*Kullar, supra*, 168 Cal.App.4th at pp. 123–132.)

On renewal, Plaintiff shall provide a sufficiently detailed summary of the potential value of the material claims, the principal defenses and litigation risks affecting those valuations, and the basis for the discounts applied in reaching the settlement. Plaintiff shall separately address the valuation of the PAGA claims and explain why the PAGA allocation is fair, reasonable, and adequate in light of the purposes of PAGA.

There is an additional problem. The Settlement Agreement attached to Mr. Bokhour's declaration in support of final approval does not appear to be the revised Settlement Agreement that was submitted to the Court on August 26, 2025, and thereafter preliminarily approved. The Court cannot enter final approval without being able to identify with certainty the agreement that was preliminarily approved, disclosed to the Class, and is now presented for final approval.

Any renewed motion shall attach the final, operative Settlement Agreement that was preliminarily approved by the Court and shall clearly identify any changes from the version previously submitted.

ATTORNEYS' FEES

Class Counsel request \$176,666.67 in attorneys' fees, representing one-third of the gross settlement amount. The Court does not find a one-third percentage unreasonable merely because it exceeds a 25% federal benchmark. California permits a trial court in a common-fund case to calculate a reasonable fee as a percentage of the fund, and *Laffitte v. Robert Half International Inc.* (2016) 1 Cal.5th 480 affirmed an award of one-third of the common fund. The Court may, in its discretion, use a lodestar calculation as a cross-check on the percentage selected. (*Id.* at pp. 503–506.)

The present record nevertheless is insufficient to determine a reasonable fee.

The motion states that Class Counsel's combined lodestar is \$104,087.50 based on 141 hours of work and requests a multiplier of approximately 1.69 to reach the requested \$176,666.67 fee. The supporting declarations, however, contain material inconsistencies. Mr. Bokhour states that counsel seek \$208,333.33 in fees rather than \$176,666.67; the motion includes 20 hours of anticipated future work, while Mr. Bokhour's declaration refers to 30 anticipated hours; and both counsel's declarations refer to a multiplier of 1.83 rather than the 1.69 multiplier stated in the motion.

These inconsistencies prevent a reliable lodestar cross-check. On renewal, Class Counsel shall identify a single requested fee amount, provide an accurate calculation of the lodestar, separately identify actual and anticipated hours, and state the precise multiplier, if any, necessary to reach the requested fee.

A lodestar is calculated using the number of hours reasonably expended multiplied by a reasonable hourly rate, with the reasonable rate ordinarily measured by the prevailing rate in the relevant community for comparable legal services. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) Counsel presently state, without supporting evidence, that their requested rates are comparable to or consistent with prevailing rates for attorneys of similar experience handling complex wage-and-hour litigation. On renewal, counsel shall provide sufficient evidence supporting the requested

hourly rates, including evidence concerning prevailing Bay Area rates for attorneys performing comparable work with comparable experience.

The Court also requires a sufficiently reliable record of the hours claimed. Although *Laffitte* holds that a lodestar cross-check may be conducted from declarations summarizing counsel's time and does not invariably require scrutiny of daily time sheets, it also confirms that the trial court retains discretion to consider detailed time records. (*Laffitte, supra*, 1 Cal.5th at pp. 505–506.) Given the inconsistencies in the present submissions, Class Counsel shall submit detailed time records or comparably specific summaries identifying the work performed, the attorney performing it, the hours incurred, and the applicable billing rate.

Finally, if counsel continue to seek a multiplier, they shall explain the case-specific grounds supporting it. Relevant considerations may include the novelty and difficulty of the questions presented, the skill displayed, the extent to which the litigation precluded other employment, and the contingent risk assumed, to the extent those considerations are not already reflected in the lodestar. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) Generic references to the contingent nature of litigation, “significant challenges,” “creative strategies,” or a “prolonged battle with well-funded corporations” are insufficient, particularly where this action involves one Defendant and counsel do not identify the particular challenges or extraordinary work that allegedly justify enhancement.

COSTS, SETTLEMENT ADMINISTRATION EXPENSES, AND CLASS REPRESENTATIVE AWARD

Class Counsel request reimbursement of \$14,512.80 in litigation costs, consisting of the LWDA filing fee, mediation expenses, filing fees, service-of-process expenses, and expert fees. Counsel have provided an itemized breakdown of those expenses. ILYM seeks \$7,350 in settlement-administration expenses and has submitted an invoice supporting that request. Plaintiff also seeks a \$5,000 class representative service payment and previously submitted a declaration describing approximately 25 to 30 hours devoted to the case, his assistance to counsel and with mediation, and the risks and burdens associated with serving as Class Representative.

The Court identifies no present concern with the amounts requested for costs, settlement administration, or the class representative payment. Because final approval is denied without prejudice, however, approval of those requests is deferred and will be addressed with the renewed motion.

PROPOSED ORDER

Any renewed motion shall be accompanied by a corrected proposed order.

The first paragraph shall correctly state that preliminary approval was entered on **September 22, 2025**.

The proposed order shall not state that the Court approved the fee request solely under one particular methodology. If fees are ultimately awarded, the order need state only the amount awarded unless the Court directs otherwise.

The parties need not reproduce the settlement release verbatim in the proposed order. The final and operative Settlement Agreement shall instead be attached to the proposed order and incorporated as appropriate.

DISPOSITION

Plaintiff's Motion for Final Approval of Class and PAGA Settlement is **DENIED WITHOUT PREJUDICE**.

Any renewed motion shall:

1. Attach the final operative Settlement Agreement that was preliminarily approved and provided to the Class;

-
2. Provide sufficient information concerning the potential value of the released class and PAGA claims, the principal litigation risks, and the basis for the settlement discounts to permit the Court to conduct the independent review required by *Kullar* and *Moniz*;
 3. Reconcile the inconsistencies concerning the requested attorneys' fees, lodestar, anticipated hours, and multiplier;
 4. Provide sufficient support for the hourly rates and hours claimed; and
 5. Submit a corrected proposed order consistent with this ruling.

The Court will address final settlement approval, attorneys' fees and costs, settlement-administration expenses, and the requested class representative service payment upon a renewed and adequately supported motion.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 7

25-CIV-05784

REGINALD LEACH VS GLOBAL BLOOD THERAPEUTICS, INC.

REGINALD LEACH
GLOBAL BLOOD THERAPEUTICS, INC.

ERIN BERNSTEIN
GEORGE L GIGOUNAS

DEFENDANT GLOBAL BLOOD THERAPEUTICS, INC.'S DEMURRER TO PLAINTIFF'S COMPLAINT

TENTATIVE RULING:

This action arises from Defendant Global Blood Therapeutics' ("Defendant") development, testing, manufacturing, labeling, packaging, promotion, advertising, marketing, distribution, and sale of Oxbryta[®] (voxelotor), a prescription medication intended to treat sickle cell disease ("SCD") in adults and children four years of age and older. (Complaint, filed July 30, 2025, ¶ 1.) Plaintiff Reginald Leach ("Plaintiff") alleges that he was prescribed Oxbryta to treat his SCD and that the drug caused him to suffer more severe and frequent sickle cell anemia with crisis and acute chest syndrome. (Id., ¶ 5.)

Defendant demurs to the First Cause of Action for strict liability—failure to warn, Second Cause of Action for strict liability—design defect, Third Cause of Action for negligence, Fourth Cause of Action for breach of express warranty, Fifth Cause of Action for breach of implied warranty, and Sixth Cause of Action for negligent misrepresentation. Defendant principally contends that all six causes of action are federally preempted and that the Fourth and Fifth Causes of Action are additionally deficient under the learned-intermediary doctrine. (NODD, filed Sept. 10, 2025, pp. i:8–ii:6.)

GOVERNING STANDARDS

A demurrer tests the legal sufficiency of the pleading. In ruling on a demurrer, the Court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) A demurrer generally may be sustained only for defects appearing on the face of the pleading or from matters properly subject to judicial notice. (Code Civ. Proc., § 430.30, subd. (a); *Blank, supra*, at p. 318.) The complaint must be liberally construed with a view toward substantial justice between the parties. (Code Civ. Proc., § 452.)

Where a reasonable possibility exists that a pleading defect can be cured by amendment, leave to amend should be granted. The burden, however, rests on the plaintiff to demonstrate how the complaint can be amended to cure the identified defect. (*Blank, supra*, 39 Cal.3d at p. 318.)

FIRST CAUSE OF ACTION — STRICT LIABILITY—FAILURE TO WARN

The demurrer to the First Cause of Action is **OVERRULED**.

Defendant contends that Plaintiff's failure-to-warn claim is preempted by federal law because Defendant could not have changed Oxbryta's FDA-approved label without FDA approval.

Federal law generally prohibits a prescription-drug manufacturer from unilaterally changing an FDA-approved label. An exception exists under the FDA's changes-being-effected ("CBE") regulation, which permits a manufacturer, under specified circumstances, to strengthen a contraindication, warning, precaution, or adverse-reaction statement based on "newly acquired information" without awaiting prior FDA approval. (21 C.F.R. § 314.70(c)(6)(iii)(A).) "Newly acquired information" includes data, analyses, or other information not previously submitted to FDA that reveal risks of a different type or greater severity or frequency than previously disclosed to the agency. (21 C.F.R. § 314.3(b).)

The Court finds persuasive the framework articulated in *Gibbons v. Bristol-Myers Squibb Co.* (2d Cir. 2019) 919 F.3d 699, 708. Under that framework, a plaintiff seeking to avoid impossibility preemption must plausibly allege a labeling deficiency that the manufacturer could have addressed through the CBE process. If such a showing is made, the manufacturer may nevertheless establish preemption by demonstrating, under the standard articulated in *Wyeth v. Levine* (2009) 555 U.S. 555 and *Merck Sharp & Dohme Corp. v. Albrecht* (2019) 587 U.S. 299, that FDA would not have approved the proposed labeling change.

Here, Plaintiff alleges the existence of newly acquired information arising from the RETRO study. According to the Complaint, the study found that 68.1 percent of participating patients experienced SCD complications that were either new or had worsened in intensity or frequency during treatment. Plaintiff further alleges that the annualized incidence of any SCD complication increased from 45.0 percent before Oxbryta to 106.7 percent after Oxbryta; acute chest syndrome increased from 2.9 percent to 8.8 percent; and acute pain crisis increased from 33.6 percent to 68.7 percent. Plaintiff alleges that RETRO was completed on February 25, 2022. (Complaint, ¶ 40.) Plaintiff further alleges that Defendant withdrew Oxbryta from the market in September 2024. (*Id.*, ¶ 4.)

At the pleading stage, these allegations are sufficient to support a reasonable inference that the RETRO study generated information concerning a greater frequency or severity of risks associated with Oxbryta than had previously been disclosed to FDA and thus potentially constituted "newly acquired information" within the meaning of 21 C.F.R. section 314.3(b). The relevant point is not simply that more than two years elapsed between completion of the study and withdrawal of Oxbryta, but that Plaintiff alleges Defendant possessed information during that period that could have supported a unilateral warning change under the CBE regulation.

Nothing presently before the Court establishes, as a matter of law on demurrer, either that the alleged RETRO information had previously been submitted to FDA, that it was legally insufficient to support a CBE labeling change, or that FDA would have rejected the stronger warning alleged to have been required. Accordingly, Defendant has not established impossibility preemption on the face of the Complaint.

The demurrer to the First Cause of Action is therefore **OVERRULED**.

SECOND CAUSE OF ACTION — STRICT LIABILITY—DESIGN DEFECT

The demurrer to the Second Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

Plaintiff has expressly agreed to withdraw this cause of action. Moreover, California does not impose strict liability on prescription-drug manufacturers for alleged design defects. (*Brown v. Superior Court* (1988) 44 Cal.3d 1049, 1061, 1069.)

Accordingly, the demurrer to the Second Cause of Action is **SUSTAINED WITHOUT LEAVE TO AMEND**.

THIRD CAUSE OF ACTION — NEGLIGENCE

The demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

Plaintiff argues that his negligence claim may proceed as a pre-FDA-approval negligent-design theory. Federal courts are divided as to whether such a theory is preempted. Some federal courts, including the Northern District of California in *Holley v. Gilead Sciences, Inc.* (N.D. Cal. 2019) 379 F.Supp.3d 809, 824, have concluded that a manufacturer potentially can comply with both state and federal law by designing a different product before submitting that product for FDA approval. (See also *In re Tepezza Marketing, Sales Practices, & Products Liability Litigation* (N.D.Ill. Nov. 3, 2023, No. 23 C 3568) 2023 WL 7281665, at *2–3.) Other courts have reached the contrary conclusion. (See, e.g., *Yates v. Ortho-McNeil-Janssen Pharmaceuticals, Inc.* (6th Cir. 2015) 808 F.3d 281, 299–300.)

The Court need not resolve that broader preemption question on the present pleading because Plaintiff has not adequately alleged a preapproval negligent-design theory.

California law permits negligence-based product-liability claims involving prescription drugs even though strict liability for prescription-drug design defects is unavailable. (*Brown, supra*, 44 Cal.3d at p. 1061.) The California Supreme Court recently addressed the limits of negligence liability in the prescription-drug context in *Gilead Tenofovir Cases* (Aug. 3, 2026, S283862) ___ Cal.5th ___. There, the Court held that a manufacturer does not owe users of a concededly nondefective drug a separate duty to develop and commercialize an allegedly safer alternative drug. That decision does not eliminate traditional negligence theories based on an allegedly defective product itself, including defects in design, manufacture, or warnings.

Here, however, the Third Cause of Action does not clearly allege that Oxbryta was negligently designed before FDA approval or identify what aspect of its design rendered the product defective. Instead, the Complaint alleges, among other things, that Defendant downplayed the significance of clinical-trial results to FDA; knew before marketing Oxbryta that it lacked clinical benefit; knew or should have known of studies concerning Oxbryta's mechanism of action; failed to provide FDA with newly acquired information; and should have further investigated the risks associated with the drug. (Complaint, ¶¶ 26, 33–36, 47–49, 56–58.)

To the extent Plaintiff's negligence theory depends solely on an alleged failure to provide information to FDA or on allegedly misleading FDA, such a claim implicates *Buckman Co. v. Plaintiffs' Legal Committee* (2001) 531 U.S. 341, 348, which holds that state-law claims predicated solely on duties of disclosure owed to FDA are impliedly preempted. State tort law cannot impose liability merely for violating disclosure obligations that exist solely by virtue of the federal regulatory scheme.

At the same time, nothing in this ruling forecloses Plaintiff from alleging, if he can do so consistently with California law and federal preemption principles, an independent state-law negligence theory based on a defect in Oxbryta itself or another state-law duty that exists independently of Defendant's obligations to FDA.

Nor does the Court decide at this stage whether a properly pleaded preapproval negligent-design theory would ultimately survive federal preemption.

Accordingly, the demurrer to the Third Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FOURTH CAUSE OF ACTION — BREACH OF EXPRESS WARRANTY

The demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

California law does not categorically preclude a warning-based warranty claim against a prescription-drug manufacturer. (*Carlin v. Superior Court* (1996) 13 Cal.4th 1104, 1118.) In the prescription-drug context, however, the manufacturer ordinarily directs information concerning the drug's properties to the prescribing physician, who stands in the shoes of the ordinary consumer. (*Id.* at p. 1118.)

The learned-intermediary doctrine therefore bears directly on Plaintiff's express-warranty theory. Manufacturers of prescription drugs ordinarily discharge their duty concerning product warnings by adequately informing prescribing physicians rather than patients directly. (*Carlin, supra*, 13 Cal.4th at p. 1116; *Himes v. Somatics, LLC* (2024) 16 Cal.5th 209, 224.)

Plaintiff alleges generally that, despite knowledge of serious problems with Oxbryta, Defendant continued to market the drug, make presentations at conferences, and distribute medical literature, studies, and other communications to the medical community in an effort to mislead physicians and the public concerning Oxbryta's risks. Plaintiff further alleges that Defendant made representations intending to induce reliance. (Complaint, ¶¶ 166–168.) Plaintiff also alleges generally that Defendant should have warned patients and prescribers, including Plaintiff's treating physicians, of Oxbryta's adverse events and that Defendant concealed Oxbryta's true risks from Plaintiff and his physicians. (*Id.*, ¶¶ 53, 79.)

These allegations do not sufficiently connect any particular affirmation, promise, or representation by Defendant to Plaintiff's prescribing or treating physician. The Complaint does not allege what representation constituting an express warranty was communicated to any physician who prescribed Oxbryta to Plaintiff, when or how that physician received it, or that the representation played any role in the decision to prescribe Oxbryta to Plaintiff.

The Court does not hold that Plaintiff must prove his express-warranty claim at the pleading stage. But generalized allegations that Defendant marketed Oxbryta to the medical community do not sufficiently allege the necessary connection between Defendant's alleged express representations and Plaintiff's prescription.

Accordingly, the demurrer to the Fourth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

FIFTH CAUSE OF ACTION — BREACH OF IMPLIED WARRANTY

The demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

The implied-warranty claim requires somewhat different analysis. Unlike an express-warranty claim, an implied warranty does not depend upon proof that Defendant made a particular express promise or

representation. Accordingly, the absence of allegations that Plaintiff's physician actually saw specific marketing materials is not, standing alone, a sufficient basis to reject an implied-warranty theory.

Nevertheless, where a prescription-drug warranty claim is premised upon allegedly inadequate disclosure of known or knowable risks, California law treats the prescribing physician as the relevant intermediary and, ordinarily, as the person standing in the shoes of the consumer. (*Carlin, supra*, 13 Cal.4th at p. 1118.)

The Complaint does not adequately allege the causal connection between the allegedly inadequate information provided by Defendant and Plaintiff's use of Oxbryta. In *Himes v. Somatics, LLC, supra*, 16 Cal.5th at page 226, the California Supreme Court explained that causation under the learned-intermediary doctrine may be established by showing either that an adequate warning would have affected the physician's treatment decision or, alternatively, that the physician would have communicated the stronger warning to the patient and an objectively prudent person in the patient's position would thereafter have declined the treatment notwithstanding the physician's continued recommendation.

Plaintiff presently alleges neither theory with sufficient factual specificity. The Complaint does not allege facts showing that an adequate disclosure of Oxbryta's risks would have caused Plaintiff's prescribing physician to decline to prescribe the drug or materially alter the treatment recommendation. Nor does it allege that the physician would have communicated a stronger warning to Plaintiff and that an objectively prudent patient in Plaintiff's position would have declined Oxbryta after receiving that warning.

Accordingly, the demurrer to the Fifth Cause of Action is **SUSTAINED WITH LEAVE TO AMEND**.

SIXTH CAUSE OF ACTION — NEGLIGENT MISREPRESENTATION

The demurrer to the Sixth Cause of Action is **OVERRULED** on the ground of federal preemption.

As discussed above, *Buckman Co. v. Plaintiffs' Legal Committee, supra*, 531 U.S. at page 348, precludes a state-law claim that exists solely because a defendant allegedly misrepresented or withheld information from FDA. Thus, to the extent Plaintiff seeks to impose liability for representations made solely to FDA or for failure to provide FDA information required exclusively by federal law, such a theory is preempted.

The Sixth Cause of Action, however, is not alleged solely on that basis. Plaintiff alleges that Defendant also made misleading representations and omissions to physicians and the broader medical community concerning Oxbryta's safety and risks. (Complaint, ¶¶ 79, 166–168.) A state-law duty not to make negligent misrepresentations to physicians or others does not arise solely from the FDCA or Defendant's relationship with FDA.

Accordingly, federal preemption does not dispose of the Sixth Cause of Action in its entirety on the face of the Complaint. Whether Plaintiff can ultimately establish the elements of negligent misrepresentation, including an actionable misrepresentation, justifiable reliance, causation, and damages, is not resolved by the present demurrer insofar as Defendant challenges the claim on federal-preemption grounds.

The demurrer to the Sixth Cause of Action is therefore **OVERRULED**.

DISPOSITION

Defendant Global Blood Therapeutics' Demurrer to Plaintiff Reginald Leach's Complaint is ruled upon as follows:

1. The demurrer to the **First Cause of Action for strict liability—failure to warn** is **OVERRULED**.
2. The demurrer to the **Second Cause of Action for strict liability—design defect** is **SUSTAINED WITHOUT LEAVE TO AMEND**, consistent with Plaintiff's withdrawal of that claim.
3. The demurrer to the **Third Cause of Action for negligence** is **SUSTAINED WITH LEAVE TO AMEND**.
4. The demurrer to the **Fourth Cause of Action for breach of express warranty** is **SUSTAINED WITH LEAVE TO AMEND**.
5. The demurrer to the **Fifth Cause of Action for breach of implied warranty** is **SUSTAINED WITH LEAVE TO AMEND**.
6. The demurrer to the **Sixth Cause of Action for negligent misrepresentation** is **OVERRULED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff, as the prevailing party, shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

9:30 AM

LINE: 8

25-CIV-02568

PATELCO CREDIT UNION VS. JOVANNA S. BADGER

PATELCO CREDIT UNION
JOVANNA S. BADGER

BARRY A. SMITH
PRO SE

DEFENDANT JOVANNA BADGER’S MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT

TENTATIVE RULING:

For the following reasons, Jovanna S. Badger’s Motion to Vacate the Default and Default Judgment entered on December 26, 2025, is **DENIED**.

BACKGROUND

This is a debt-collection action arising from Defendant Jovanna S. Badger’s (“Defendant”) deposit account with Plaintiff credit union. The Complaint alleges that, in June and July 2024, Defendant withdrew, transferred, or otherwise spent funds exceeding the amount available in her account and thereafter failed to cure the resulting overdrafts.

The Complaint was filed on April 15, 2025. According to the proof of service and declaration of registered process server Romana Lazalde, Lazalde personally served Defendant on August 11, 2025, at Defendant’s residence at 1 Bolero Way, Daly City, California. Lazalde states that she spoke with a woman who confirmed that she was Jovanna Badger and, when Defendant refused to accept the summons and Complaint by hand, Lazalde dropped the documents through the bars of the security gate in front of Defendant. (Lazalde Decl., ¶¶ 2–4.)

Defendant moves to vacate the default and default judgment pursuant to Code of Civil Procedure sections 473, subdivision (d), and 473.5. She contends that she was not properly served and did not have actual notice of the action in time to defend it. The Court is not persuaded.

LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (d), authorizes the Court to set aside a void judgment or order. Compliance with the statutory requirements for service of process is necessary to establish personal jurisdiction; accordingly, a default judgment entered against a defendant who was not served in the manner prescribed by statute is void. (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544; *Sakaguchi v. Sakaguchi* (2009) 173 Cal.App.4th 852, 858.)

Code of Civil Procedure section 415.10 authorizes personal service by delivery of a copy of the summons and complaint to the person to be served. A person cannot defeat otherwise valid personal service merely by refusing to physically accept the documents. Where the person to be served is aware that service is being attempted but refuses to accept the papers, service may be accomplished by leaving the papers in the person's immediate presence or control. (*Trujillo v. Trujillo* (1945) 71 Cal.App.2d 257, 260; *Crescendo Corp. v. Shelved, Inc.* (1968) 267 Cal.App.2d 209, 212–213; see also *Khourie, Crew & Jaeger v. Sabek, Inc.* (1990) 220 Cal.App.3d 1009, 1013–1014.)

In addition, the return of a registered process server creates a presumption, affecting the burden of producing evidence, of the facts stated in the return. (Evid. Code, § 647.)

Section 473.5 provides a separate ground for discretionary relief where service of summons did not result in actual notice to the defendant in time to defend the action. To obtain relief, the defendant must establish that the lack of actual notice was not caused by avoidance of service or inexcusable neglect. (Code Civ. Proc., § 473.5, subds. (a)–(c); *Ellard, supra*, 94 Cal.App.4th at pp. 547–548.) “Actual notice” means genuine knowledge by the party litigant. (*Id.* at p. 547.)

DISCUSSION

THE JUDGMENT IS NOT VOID FOR LACK OF PROPER SERVICE

Defendant submits a declaration denying that she was properly served, together with photographs of the entrance gate to her residence. The photographs do not materially assist the Court in resolving the disputed service issue. They do not show meaningful damage to the gate, and they were taken substantially after the alleged service occurred.

Defendant's declaration, however, confirms several material circumstances described by the process server. Defendant acknowledges that she resides at 1 Bolero Way in Daly City, which is the address reflected on the proof of service. (Badger Decl., p. 2:1–2.) She further acknowledges that, on August 11, 2025, she encountered a woman at her residence and confirmed her identity to that woman. (*Id.* at p. 2:4, 12–13.) Defendant characterizes the woman as “yelling in a confrontational manner” but denies that legal papers were handed to her or left at the gate, door, or mailbox. (*Id.* at p. 2:19–21.)

Plaintiff submits the proof of service and Lazalde's declaration. Lazalde states that she went to Defendant's residence, stood at the security gate, knocked loudly, and spoke with a woman who confirmed that she was Jovanna Badger. (Lazalde Decl., ¶¶ 3–4.) Lazalde further states that Defendant refused to accept the documents by hand, using a profane expletive, after which Lazalde dropped the documents through the bars of the security gate directly in front of Defendant. (*Id.*, ¶ 4.)

The Court credits Lazalde's account. The registered process server's return carries the evidentiary presumption provided by Evidence Code section 647, and material aspects of Lazalde's account—including the address, date, encounter, and Defendant's confirmation of her identity—are corroborated by Defendant's own declaration.

The fact that Defendant refused to take the papers into her hands does not invalidate the service. California courts have long held that a person who knows personal service is being attempted cannot defeat service

simply by refusing to accept the documents. (*Trujillo, supra*, 71 Cal.App.2d at p. 260; *Crescendo Corp., supra*, 267 Cal.App.2d at pp. 212–213.) Here, the Court finds that Lazalde identified the person to be served, confirmed Defendant’s identity, attempted to deliver the summons and Complaint, and, when Defendant refused to accept them, left the documents in Defendant’s immediate presence through the security gate.

The Court therefore finds that Defendant was personally served on August 11, 2025, in compliance with Code of Civil Procedure section 415.10. Because service was valid, the Court obtained personal jurisdiction over Defendant, and the default judgment is not void for lack of service.

Accordingly, relief under Code of Civil Procedure section 473, subdivision (d), is **DENIED**.

DEFENDANT HAS NOT ESTABLISHED ENTITLEMENT TO RELIEF UNDER SECTION 473.5

Defendant alternatively seeks relief under Code of Civil Procedure section 473.5 on the ground that she lacked actual notice of the action in time to defend.

The Court is not persuaded.

As discussed above, Defendant admits that on August 11, 2025, she encountered the individual whom the Court finds was the registered process server and confirmed her identity. The Court credits Lazalde’s declaration that, after Defendant refused to accept the summons and Complaint, Lazalde dropped those documents directly in front of Defendant through the bars of Defendant’s security gate.

On this record, the Court finds that the August 11, 2025 service resulted in actual notice of the action. Defendant cannot establish a lack of actual notice under section 473.5 by refusing to accept documents that were personally presented to her and then left immediately in front of her.

Defendant’s declaration also states that she subsequently discovered legal papers relating to this action underneath the stairs inside her home. (Badger Decl., p. 2:23–24.) The declaration identifies the date of that discovery as “November 2024.” Because this action was not filed until April 15, 2025, that date is facially inconsistent with the chronology of the case. The Court therefore does not rely on the stated date of discovery in resolving the motion.

Even without relying on that allegation, the evidence concerning the August 11, 2025 encounter is sufficient. The Court finds that Defendant has not established that service failed to provide her with actual notice in time to defend the action or that any lack of notice was unrelated to her refusal to accept the documents.

Accordingly, Defendant has not established entitlement to discretionary relief under Code of Civil Procedure section 473.5.

DISPOSITION

Jovanna S. Badger’s Motion to Vacate the Default and Default Judgment entered on December 26, 2025, pursuant to Code of Civil Procedure sections 473, subdivision (d), and 473.5 is **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Plaintiff, as the prevailing party, shall prepare and submit a proposed written order consistent with this ruling pursuant to California Rules of Court, rule 3.1312, and shall provide notice of the ruling as required by law. Please note that Local Rule 3.403(b)(iv) states in part “prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

Posted: 3:00 P.M.

